

Kavyashree L vs Hemantha H on 14 September, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:33436
CP No. 71 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14TH DAY OF SEPTEMBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 71 OF 2023

BETWEEN:

KAVYASHREE L W/O SRI. HEMANTH H,
D/O SRI. LINGAPRAKASH,
AGED 22 YEARS,
R/AT HANUMADRI KRUPA,
1ST MAIN ROAD, 5TH CROSS,
2ND LING ROAD, ADARSHANAGAR,
HANUMANTHAPURA MAIN ROAD,
TUMKURU - 572 103.

...PETITIONER

(BY SMT. MANJULA D., ADVOCATE)

AND:

HEMANTHA H,
S/O SRI. L.N.HANUMANTHARAYAPPA,
AGED 28 YEARS, R/AT NO.25,
"PRUTHIVI NILAYA", 2ND MAIN,
2ND CROSS, ANJANADRI LAYOUT,
HEGGANAHALLI, BANGALORE - 560 091.

Digitally signed by A K CHANDRIKA
Location: High Court of Karnataka

...RESPONDENT

(BY SRI. SHIVASHANKARA Y D., ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF
THE CPC,1908, PRAYING TO DIRECT TRANSFER OF MC NO.
6426/2022 ON THE FIE OF HON'BLE V ADDL. PRINCIPAL JUDGE
FAMILY COURT AT BENGALURU TO FAMILY COURT TUMKURU
AND PASS SUCH OTHER ORDER OR ORDERS AS THIS HONBLE
COURT MAY DEEM FIT IN THE FACTS AND CIRCUMSTANCES OF

THE CASE TO MEET THE ENDS OF JUSTICE AND EQUITY.

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THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

The petitioner, wife of respondent is before this Court under Section 24 of the Code of Civil Procedure, 1908 (for short 'CPC') with a prayer to transfer M.C.No.6426/2022 pending on the file of V Additional Principal Judge, Family Court, Bengaluru to the Family Court, Tumkuru.

2. Heard Smt. Manjula.D., learned counsel for the petitioner and Sri. Shivashankara.Y.D., learned counsel for the respondent through video conference. Perused the petition papers.

3. Learned counsel for the petitioner submits that the marriage of the petitioner and respondent was solemnized on 09.06.2019. It is submitted that the petitioner has no income of her own and she is depending on her parents for livelihood. Therefore, it would be difficult for the petitioner-wife to travel from Tumkuru NC: 2023:KHC:33436 to Bengaluru to attend the proceedings in M.C.No.6426/2022.

4. The respondent-husband has initiated proceedings under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955, for dissolution of marriage. Annexure-C would indicate that the petitioner-wife is studying at S.S.I.T. Campus, Tumkur.

5. In the petition filed under Section 24 of CPC for transfer of proceedings, more particularly in matrimonial cases, the Court shall have to look into the inconvenience and hardship that would be caused to the wife along with financial and social status of the parties.

6. It is the case of the petitioner that she is not working and she has no income of her own and depending on parents for her livelihood. The petitioner is residing at Tumkuru with her parents and studying at Tumkur. It may be difficult for the petitioner to travel from Tumkuru to Bengaluru to attend the proceedings. If the NC: 2023:KHC:33436 transfer of proceedings is not allowed, the petitioner-wife would suffer more hardship and inconvenience than the respondent-husband. Hence, the following:

ORDER i. Petition filed under Section 24 of CPC is allowed, directing transfer of M.C.No.6426/2022 on the file of V Additional Principal Judge, Family Court, Bengaluru to the Family Court, Tumkuru, for disposal in accordance with law.

Sd/-

JUDGE SMJ